GENTNER DRUMMOND
ATTORNEY GENERAL

May 8, 2026

Via Hand Delivery and Email

Benjamin Lepak
Office of the Secretary of State
2300 N. Lincoln Blvd., Ste. 122
Oklahoma City, OK 73015
Benjamin.Lepak@sos.ok.gov

Re: Ballot Title for State Question 847, Legislative Referendum 381

Dear Secretary Lepak:

In accordance with the provisions of 34 O.S.2021, § 9(C)(1), my office has reviewed the proposed ballot title for the above-referenced State Question, and it concludes that it fails to comply with applicable laws for the reasons below. The proposed Ballot Title language does not sufficiently and clearly explain the effect of the proposed measure, as required under 34 O.S.2021 and Supp.2025, § 9(B)(2), (8), including, but not limited to:

(1) The proposed Ballot Title language does not sufficiently and clearly explain the effect of the proposed measure as required by 34 O.S.2021, § 9(B)(2), as follows:

(a) The proposed language does not effectively explain in basic words which income measurement from federal law (the estimated median income amount for the preceding year for the county or metropolitan statistical area, including such county, as determined by the U.S. Department of Housing and Urban Development) will be used to determine the applicable limit on increases under the proposed subsection E to article 10, section 8C of the Oklahoma Constitution.

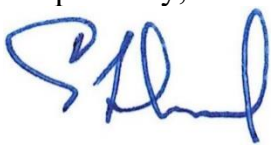
(b) The proposed language does not effectively explain in basic words that the income threshold cap will be eliminated.

(2) The proposed Ballot Title fails to indicate whether the proposed measure "will have a fiscal impact on the state and if so, the potential source of funding" as required by 34 O.S.2021 & Supp.2025, § 9(B)(1), (8) as follows:

> The proposed language does not state whether the measure will have a fiscal impact on the state or not.

Having found that the ballot title does not comply with section 9(B), my office will, in accordance with the provisions of 34 O.S.2021, § 9(C)(1), prepare a preliminary Ballot Title that complies with the law and furnish you, Senate President Pro Tempore Paxton, and House Speaker Hilbert with a copy within ten (10) business days.

Respectfully,



GENTNER DRUMMOND
Attorney General of Oklahoma

GENTNER DRUMMOND
ATTORNEY GENERAL

June 3, 2026

Via Email

Benjamin Lepak
Office of the Secretary of State
2300 N. Lincoln Blvd., Ste. 122
Oklahoma City, OK 73015
Benjamin.Lepak@sos.ok.gov

Re: Ballot Title for State Question 847, Legislative Referendum 381

Dear Secretary Lepak:

On May 22, 2026, the office provided you with a proposed ballot title for the above-referenced State Question compliant with title 34, section 9(B)'s requirements and in accordance with section 9(C). The office received comments from the Senate and House of Representatives. Accordingly, the office now submits the enclosed Final Ballot Title taking the comments from both houses in mind. As a title 34 ballot title review, the following does not constitute an Attorney General Opinion.

Respectfully,

GENTNER DRUMMOND
Attorney General

cc: Hon. Lonnie Paxton
President Pro Tempore, Oklahoma Senate
Lonnie.Paxton@oksenate.gov

Hon. Kyle Hilbert
Speaker, Oklahoma House of Representatives
Kyle.Hilbert@okhouse.gov

att.

SQ 847, LR 381 Final Ballot Title

This measure amends article 10, sections 8B and 8C of the Oklahoma Constitution. Currently, section 8B limits annual growth in fair cash value to 5% for most real property or 3% for homesteads and agricultural land. If approved, the measure would limit annual growth in fair cash value for tax year 2027 and after to 4% for most real property or 1.75% for homesteads and agricultural land. Currently, section 8C prohibits any increase in fair cash value of homestead property for persons age sixty-five (65) or older whose income does not exceed certain limits, sometimes referred to as the "senior freeze." Instead of prohibiting any increase in fair cash value for these homesteads, there would be an annual limit of 1.75%. The measure eliminates the income cap on gross household income to qualify for the senior freeze. If approved, the annual limit on an increase in fair cash value would be tied to how much gross household income the homestead owner had in the preceding year. If a homeowner's gross household income from the previous year was at or below the median income for their county or area (as determined by the U.S. Department of Housing and Urban Development's estimated median income amount for the county or metropolitan statistical area), a homeowner's homestead fair cash value cannot be increased. If the income amount was in excess of certain thresholds, the limit on increases in fair cash value for homesteads owned by persons age 65 or older could be 0.35% (income over 100% up to 120%); 0.7% (income over 120% up to 140%); 1.05% (income over 140% up to 160%); 1.4% (income over 160% up to 180%); or 1.75% (income over 180%). If passed, this measure would have a fiscal impact on the state, but the exact impact is unknown.

Shall the proposal be approved?

For the proposal – YES

Against the proposal – NO

Benjamin M. Lepak
Secretary of State

J. Kevin Stitt
Governor

OKLAHOMA SECRETARY OF STATE

June 4, 2026

The Honorable Paul Ziriax
Secretary, State Election Board
State Capitol, Room G28
Oklahoma City, Oklahoma 73105

Re: SOS certification of the Final Ballot Title, as rewritten by the Attorney General, for State Question 847, Legislative Referendum 381 (SJR 39)

Dear Secretary Ziriax:

In accordance with the provisions of 34 O.S. § 9(C)(2), I herewith transmit to you State Question 847, Legislative Referendum 381 and attest that the enclosed copy of Senate Joint Resolution 39 (Subject: Real property valuation) is a true and accurate copy of the measure on record with this office. Also enclosed is a true and accurate copy of the Final Ballot Title, as rewritten by the Attorney General for State Question 847, Legislative Referendum 381.

If our office may be of any further assistance, please let us know.

Sincerely,

Benjamin Lepak

Benjamin M. Lepak
Secretary of State

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JUN 04 2026
STATE ELECTION BOARD

Benjamin M. Lepak
Secretary of State

J. Kevin Stitt
Governor

OKLAHOMA SECRETARY OF STATE

June 4, 2026

The Honorable Kevin Stitt
Governor, State of Oklahoma
State Capitol, Room 212
Oklahoma City, Oklahoma 73105

Re: SOS certification of the Final Ballot Title, as rewritten by the Attorney General, for State Question 847, Legislative Referendum 381 (SJR 39)

Dear Governor Stitt:

Pursuant to 34 O.S. § 9(C)(2), the Secretary of State has transmitted to the Secretary of the State Election Board an attested copy of the above referenced measure and a copy of the Final Ballot Title, as rewritten by the Attorney General. Please find enclosed true and accurate copies, on record with this office, of

- SJR 39 (Subject: Real property valuation),
- Attorney General's rewritten Final Ballot Title, and
- the SOS transmittal letter addressed to the Secretary of the State Election Board.

Should you have any questions, please do not hesitate to contact our office.

Sincerely

Benjamin Lepak

Benjamin M. Lepak
Secretary of State

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JUN 04 2026
By:_____